
Appeal Decision

Site visit made on 28 July 2026

by M Aqbal BA (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref: 6004592

14 St Catherines Road, Hayling Island, Hampshire PO11 0HE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr Alan Capaldi-Tallon against the decision of Havant Borough Council.
 - The application Ref is APP/25/00185.
 - The development proposed is outline application for construction of a single storey two bed dwelling to the west garden area with a new access from St Catherines Road to become 14A St Catherines Road.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The application is in outline form with approval sought for access, layout and scale, whilst appearance and landscaping are reserved matters. As far as any details relating to those reserved matters have been provided on the submitted plans, I have treated these as indicative.
3. The Council's second reason for refusal states that no supporting arboricultural information had been submitted. However, the Council's appeal statement clarifies that arboricultural information accompanied the application, but raises concerns regarding its adequacy for assessing the effects of the proposal on existing trees. I have considered the appeal on that basis.

Main Issues

4. The main issues are:
 - i) the effect of the proposal on the character and appearance of the area; and
 - ii) whether the evidence before me demonstrates that the proposed access and layout could be implemented without unacceptable harm to existing trees.

Character and Appearance

5. The appeal site forms part of the rear garden of 14 St Catherines Road (No. 14), a detached dwelling located within an established residential area. The surrounding area is characterised principally by detached dwellings set within varied and relatively spacious plots, with substantial rear gardens, mature landscaping and a strong presence of established trees. These features contribute positively to the verdant character of the area and its sense of spaciousness. Most dwellings have a direct relationship with, and frontage onto, St Catherines Road.

6. The Havant Borough Design Guide Supplementary Planning Document identifies potential issues associated with tandem and backland development, including the risk of cramping and harm to local character.
7. The proposal would subdivide the existing residential plot and introduce a single dwelling to the rear of No. 14 in a backland arrangement that differs from the predominant frontage pattern along St Catherines Road. However, the fact that a proposal departs from the prevailing pattern does not in itself establish harm. Rather, the effect of that departure must be assessed having regard to the scale of the proposal and the characteristics of the site and surrounding area.
8. Examples of additional residential development within large domestic plots are evident on St Catherines Road and elsewhere in the wider area. However, the circumstances of those developments differ in various respects from the appeal proposal, including plot dimensions, site layout, the form of development and the policy context against which they were assessed. In particular, those examples appear generally to comprise infill development alongside existing dwellings, rather than the creation of backland plots in a tandem arrangement. Consequently, they carry limited weight in my assessment. Nevertheless, they demonstrate that the subdivision of residential plots and the introduction of additional dwellings are not entirely alien to the wider character of the locality.
9. I have also had regard to the development relating to land at the rear of 21 St Catherines Road. Whilst that case was determined under a different policy framework, it demonstrates that tandem or backland development in this locality has not been found unacceptable in principle where the specific characteristics of a site supported such a conclusion.
10. In this case, the proposal would not fully reflect the prevailing pattern of development, which is characterised predominantly by detached dwellings sited adjacent to one another, fronting the road and occupying spacious plots with generous rear gardens.
11. Nonetheless, the proposed dwelling would be single-storey and modest in scale. Furthermore, the evidence before me indicates that both the existing and proposed dwellings would retain plots of a size commensurate with the varied character of the area, together with adequate private amenity space.
12. Whilst No. 14 is positioned further back within its plot than some neighbouring properties, the submitted layout indicates that adequate separation would remain between the existing and proposed dwellings. Consequently, I am not persuaded that the resulting relationship would appear unduly cramped or materially erode the spacious character that is evident in the area.
13. Having regard to the size of the resulting plots, the scale and form of the proposed dwelling, and subject to the retention of mature landscaping, I am not persuaded that the development would appear unduly cramped, overdeveloped or incongruous.
14. Although the proposal would introduce a degree of change to the existing pattern of development, it would not unacceptably undermine the spacious qualities that characterise the area. Accordingly, the effect on the character and appearance of the area would be limited.
15. For the above reasons, the proposal would respond satisfactorily to its surroundings and would not harm local character, appearance or distinctiveness. Therefore, the

proposal accords with Policy CS16 of the Havant Borough Core Strategy (CS), which, amongst other things, seeks to ensure that development is sympathetic to local character and distinctiveness, respects the scale, form and pattern of surrounding development, and contributes positively to a sense of place. It would also accord with similar design objectives of the National Planning Policy Framework (the Framework).

Trees

16. The site contains several mature trees, including a protected Oak tree towards the front of the appeal site, which contributes positively to the character and visual amenity of the area and is located close to the proposed access route. As already stated, at this stage, the proposal seeks approval of the access and layout and therefore fixes the position of the access road in relation to those trees.
17. Arboricultural information accompanied the application. However, that material has not been provided as part of the appeal submissions. It is for the appellant to substantiate its case and I must determine the appeal on the basis of the information before me.
18. Furthermore, the arboricultural information submitted at the application stage is accepted by the main parties as not having been prepared in accordance with BS5837:2012. However, my findings do not turn solely on that matter. Even if I were to set aside the question of compliance with that standard, the evidence before me remains insufficient to demonstrate that the approved access and layout could be implemented without unacceptable harm to the protected Oak tree and other retained trees on the site.
19. In particular, the evidence before me does not adequately assess the relationship between the proposed access road and the root protection areas of the protected Oak and other retained trees. Nor does it explain the construction methodology that would be employed within those areas, demonstrate how harm could be avoided or mitigated, or establish whether a no-dig or other specialist construction solution could be employed whilst maintaining a layout and access arrangement capable of serving the development.
20. In the absence of such information, I cannot reasonably assess whether the approved access arrangement is feasible without unacceptable encroachment into root protection areas or other unacceptable effects on retained trees. Consequently, I cannot be satisfied that the approved access and layout could be implemented whilst safeguarding those trees.
21. The intention to retain existing trees carries some weight. However, the retention of trees in principle does not demonstrate that the approved access and layout could be implemented without damage to roots, loss of amenity value or other adverse effects.
22. Whilst I note the Council's suggested condition stating that Development shall be carried out in accordance with an Arboricultural Method Statement and Tree Protection Plan prepared in accordance with BS5837:2012, conditions should not be used to defer consideration of a matter fundamental to establishing whether the development is acceptable in principle. Because access and layout are matters for approval in this appeal, sufficient arboricultural evidence is required at this stage to demonstrate that the approved access alignment and layout could be implemented without unacceptable effects on retained trees. The suggested conditions do not overcome the absence of such evidence.

23. Accordingly, in the absence of sufficient evidence to demonstrate that the approved access and layout could be implemented whilst safeguarding the site's mature trees (including the protected Oak) and their root protection areas, I cannot be satisfied that the proposal would adequately protect important natural features of the site. I therefore find conflict with Policies CS11 and DM8 of the CS, which seek, amongst other things, to protect natural features of landscape, nature conservation and amenity importance, including trees, and to ensure their continued survival as part of new development. The proposal would also conflict with paragraphs 136 and 187 of the Framework, which recognise the important contribution existing trees make to the character and quality of places and seek to protect and enhance the natural environment.

Other Matters

24. I have had regard to the appellant's submissions regarding the proposed energy-efficient design, enhanced insulation standards and sustainable construction methods. These considerations weigh modestly in favour of the proposal.
25. The absence of objections from Hampshire Highways, Southern Water, Natural England and the Council's Ecology Officer does not alter my findings in respect of the second main issue.

Planning Balance and Conclusion

26. The Council's evidence indicates that it can demonstrate only around 1.3 years of housing land supply. Consequently, paragraph 11(d) of the Framework is engaged and the presumption in favour of sustainable development applies.
27. I attach significant weight to the delivery of an additional dwelling given the extent of the housing land supply shortfall. I also recognise the associated economic and social benefits arising from the proposal.
28. However, the proposal fails to demonstrate that the approved access and layout could be implemented whilst safeguarding mature trees and their root protection areas. Given the contribution those trees make to local character, visual amenity and the environmental quality of the site, the uncertainty regarding whether the approved access and layout can be delivered without unacceptable harm attracts substantial weight against the proposal.
29. Taking all matters into account, including the significant weight I attach to additional housing provision, I conclude that the uncertainty surrounding the effects of the approved access and layout on important retained trees and their root protection areas, together with the resulting conflict with Policies CS11 and DM8 of the CS and the relevant provisions of the Framework, would significantly and demonstrably outweigh the benefits when assessed against the policies in the Framework taken as a whole.
30. I therefore conclude that the appeal should be dismissed.

M Aqbal

INSPECTOR